

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600187	GUZMAN vs MCGUIRE HOLDINGS, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

DENY

Defendants seek attorney's fees and costs under Civ. Code § 1942.5(i), retaliatory eviction. Plaintiff dismissed the action on 4/29/26 without prejudice. Civ. Code § 1942.5(i) provides: "In any action **brought for damages** for retaliatory eviction, the court shall award reasonable attorney's fees to the prevailing party if ether party requests attorney's fees upon the initiation of the action." (emphasis added) Here, Plaintiff did not bring an action for damages—he sought equitable relief claims for declaratory and injunctive relief. The fact that Plaintiff requested attorney's fees in the Prayer to the Complaint is irrelevant. As Defendants fail to show a statutory or contractual basis for fees, the motion is denied. Costs are also not awarded because this motion is not a proper method for seeking costs. Costs should be sought by the timely filing of a memorandum of costs. (Cal.R.Ct., rule 3.1700(a).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600240	PIGG vs NORTH AMERICAN SAVINGS BANK, F.S.B.	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

GRANT

The Second Amended Complaint (SAC) to be filed and served within 5 days.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601113	MCGRATH vs RHOE	MOTION TO QUASH SUBPOENA, OR IN THE ALTERNATIVE TO MODIFY/LIMIT SUBPOENA AND ISSUE A PROTECTIVE ORDER

Tentative Ruling:

GRANT the Motion to Quash the Subpoena.